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File No.: EXP202312082

SANCTIONING PROCEDURE RESOLUTION

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on August 22, 2023. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

“the respondent is responsible for an establishment that has surveillance cameras that are not signposted with the required informative signs for the monitored area. It also states that the cameras record audio, store images beyond the time established by law, and the establishment does not have a rest area for workers, as there are cameras throughout the premises that prevent the identification of an area for that purpose.”

It provides images of the camera locations (Documentary Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on September 12, 2023, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements established in data protection regulations.

THIRD: On September 29, 2023, this Agency received a written response from the respondent regarding the facts subject to the transfer, stating the following:

- I have a contract with Seguritas Direct SAU in order since January 25, 2020 (attached is a copy of it).
- Currently, the premises have 5 continuous recording cameras, with two signs that are visually observed by all customers and workers (...).
- The only person who has the keys for access to the cameras and recordings in the business is the aforementioned C.C.C.; no one else, not even I myself have access, delegating such responsibility to him.
- I must also say that we have camera(s) for labor control; there have been some altercations, thefts that have made us have to monitor the Bar's cash register, schedules, and other matters.
- I attach the photographs requested by you; as can be seen, there are no customers visible, we have informative signs (...).

FOURTH: On November 29, 2023, a new written response from the respondent was received, expanding the documentation submitted, through various documentary evidence (Annex II).

FIFTH: On November 22, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SIXTH: On September 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR and 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SEVENTH: On October 2, 2024, a written response from the respondent was received regarding the facts described in the Agreement to Initiate the present procedure, arguing the following:

“Well, in accordance with the documentation I provided in the letter dated September 20, 2023, to this procedure, the arrangement of the cameras in the premises is specified by drawing in the contract with the security company that installed them, as well as by the photographs of their own location, none of which are located in or capture areas prohibited by the regulations, limiting themselves to recording images of public areas solely to ensure the security of the premises and to safeguard the integrity of the workers.

In any case, I attach as Document number 1, photographs showing the field of vision of the installed cameras, in case the ones already provided were insufficient.

Consequently, and for all the above reasons, it is evidenced that the images captured by the surveillance cameras installed in the restaurant are within the limits permitted by the regulations, as their placement responds to evident security reasons for the establishment.

SECOND. - On the other hand, the initiation agreement of the sanctioning procedure is based on a supposed infringement of Article 13 GDPR as "the respondent, although providing a contract signed with the security company, does not provide all the documentation required by this agency regarding the duty to inform the workers and customers of the establishment about the video surveillance system."

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In accordance with the statements made in the document I submitted to the procedure, dated September 20, 2023, the workers were fully aware of the existence of the video surveillance cameras, not only due to the signage located in the establishment, which, as recognized in the agreement itself, complies with current regulations, but also because, due to a series of altercations and thefts that occurred in the premises, it was they who requested their installation, as well as a panic button for immediate notification to the police, being expressly informed in all cases of their existence. For evidentiary purposes, I attach as Document number 2 a signed statement by the restaurant employees, in which they acknowledge that they had been previously informed about the installation of the video surveillance cameras.

In light of the above, I REQUEST that, after the necessary verifications deemed appropriate, a resolution be issued to proceed with the filing of the proceedings.

EIGHTH: On December 16, 2024, a is issued, considering it proven that the installed system is disproportionate to its purpose, having proceeded to reinstall the informational sign during the processing of the current procedure, proposing a sanction amounting to €4,000, as the infringement of articles 5.1 c) and 13 of the GDPR is deemed proven.

NINTH: Upon consulting the database of this AEPD, it is recorded as at the associated address on January 14, 2025, being notified as certified by the Official Postal and Telegraph Service, with the corresponding receipt and signature.

From the actions taken in this procedure and the documentation in the file, the following has been proven:

PROVEN FACTS

First. The facts arise from the complaint dated August 22, 2023, through which the presence of a video surveillance system was reported, without being legally signposted.

Documentary evidence is provided (Annex I) that proves the presence of various cameras in the main areas of the establishment, including the kitchen (Doc. 1 Annex I).

Second. It is recorded that the main responsible for the system is Ms. B.B.B., with NIF ***NIF.1, who does not deny the installation of the system.

Third. It is proven that the establishment subject to the complaint did not have an informational sign at the time of the reported facts, indicating that it was a or the way to exercise rights, being limited to having the sign from the installation company, which did not indicate either the responsible party or the way to exercise rights.

The respondent proceeded to reinstall the informational signs, proving this fact on November 29, 2023, which confirms the incorrectness of the initial installation of the same, which was limited to the signage installed by the security company - Securitas Direct.

Fourth. It is proven that the establishment has a video surveillance system, which consists of a total of five cameras, installed by the company - Securitas Direct SAU.

A copy of the contract with Securitas Direct dated January 25, 2020 is provided.

The respondent provides a video indicating the location of two of the five cameras, justifying based on the images that their presence is for the security of the cash register of the establishment, without

having legally provided copies of the images from all the cameras.

Fifth. It is proven that the installed video surveillance system has the capability to record ambient sound, capturing conversations that occur inside the establishment.

Sixth. It is proven that the establishment does not have forms available for its customers who wish to exercise their rights under the current data protection regulations.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the President of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Before addressing the substance of the matter, it should be noted that the respondent states that they will provide new documentary evidence (Doc. No. 1), although in the document submitted on October 2, 2024, the content of the same is not recorded in the operating system, so it is not recorded as submitted, unless there is an error or omission, in the current procedure.

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Regarding the submitted document, also dated as mentioned, with the alleged signatures of the establishment's workers, it is appropriate to dismiss the evidence provided, not only because it is not in the context of an individual document for each worker duly informed, but also because it is not accompanied by a copy of the corresponding ID of each employee, rendering the submitted document lacking the minimum legal formalities required by this agency to be considered valid.

III

In this case, we proceed to examine the complaint dated 22/08/23, through which it is reported the "presence of cameras in the establishment without being properly signposted," considering the complainant that these may disproportionately affect their privacy.

Documentary evidence is provided that verifies the presence of devices without the exact orientation of the same being appreciated.

The respondent provides a video from one of the cameras, located in the bar area, with the understood purpose of protecting the cash register, although it does not provide images from the system of any of the other four cameras installed in the establishment, nor justifies the presence or purpose of the same.

Therefore, it is considered that the respondent has not correctly explained the exact location of all the cameras, as well as the justification for their installation, which could observe more than necessary for the purpose of the system.

Article 5.1 c) of the GDPR states the following: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the responsible party for the processing of personal data, if applicable.

Surveillance cameras for bars and restaurants are a reality in many establishments, as their

installation often has a deterrent purpose, that is, through the visible presence of cameras, the owners of such establishments hope that anyone wishing to commit any kind of crime will think twice knowing they are being watched.

Cameras must be located in those locations permitted by the regulations, that is, in public use spaces, where privacy is not presumed, such as the main bar area as long as they do not directly face the tables of the establishment or restaurant area, the dining room, the cash area, the kitchen, the entrance door(s), etc.

Therefore, the person responsible for an establishment that carries out processing for surveillance purposes in the aforementioned terms may place surveillance cameras for the previously described purpose only in the appropriate places and under the circumstances necessary to preserve safety within the establishment itself.

When analyzing proportionality, special attention must be paid to whether the measure is capable of achieving the proposed objective and whether less intrusive means can be adopted in relation to the Fundamental Right to the Protection of Personal Data, as it involves preserving the power of disposition and control of personal data by the data subject, as well as preventing interference with other fundamental rights and freedoms such as the privacy of individuals or the free development of their personality.

According to Article 20.3 of the Workers' Statute: "the employer may adopt the measures they deem most appropriate for surveillance and control to verify compliance by the worker with their labor obligations and duties."

Article 89 of LO 3/2018 (December 5) states:

1. Employers may process images obtained through camera or video camera systems for the exercise of the control functions of workers or public employees provided for, respectively, in Article 20.3 of the Workers' Statute and in public function legislation, provided that these functions are exercised within their legal framework and with the inherent limits thereof. Employers must inform, prior to and in an express, clear, and concise manner, the workers or public employees and, where applicable, their representatives, about this measure.

In the event that the commission of a flagrant illegal act by workers or public employees has been captured, the duty to inform shall be considered fulfilled when at least the device referred to in Article 22.4 of this organic law exists.

1. Under no circumstances shall the installation of sound recording systems or video surveillance in places designated for the rest or recreation of workers or public employees, such as changing rooms, restrooms, dining rooms, and similar areas, be permitted.

1. The use of systems similar to those referred to in the previous sections for sound recording in the workplace shall only be permitted when the risks to the security of facilities, property, and persons arising from the activity carried out in the workplace are relevant, and always respecting the principle of proportionality, the principle of minimal intervention, and the guarantees provided in the previous sections.

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The suppression of the sounds recorded by these recording systems will be carried out in accordance with the provisions of section 3 of Article 22 of this law.

IV

Classification and Qualification of the Infraction

In accordance with the evidence available in the sanctioning procedure, it is considered that the party being claimed has not legally clarified the facts subject to the claim regarding the proportionality of the installed system, which may obtain recordings of what occurs in the establishment in a manner disproportionate to the purpose of the system and in unnecessary spaces for that purpose.

The presence of the installed cameras must be limited to what is necessary for the protection of the establishment (e.g., access door) or in key points duly justified, such as the control of the area where

the cash register is located; the presence of other cameras is considered intrusive and disproportionate to the purpose of the system.

The known facts are therefore constitutive of an infraction, attributable to the party being claimed for the infringement of Article 5.1 c) of the GDPR, previously mentioned.

Article 83.5 of the GDPR states: "Infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; Article 72, paragraph 1, letter a) establishes a limitation period of three years for "infringements that constitute a substantial breach of the articles mentioned therein and, in particular, the following:

"a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

V

The party being claimed, while providing a contract signed with the security company, does not provide all the documentation required by this agency regarding the duty to inform the entire workforce and customers of the establishment about the video surveillance system.

Subsequent to the first transfer made by this Agency (Written notice dated 29/11/23), a new image is provided where a sign has now been installed in accordance with the current regulations.

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The installation of a video surveillance camera system requires that the presence of the cameras and the purpose of the system (e.g., for what they will be used) be communicated to the entire workforce or, where applicable, their legal representatives.

In this case, it is during the processing of the current procedure that the party being claimed provides, on 02/10/24, a document with the alleged signatures of the workers of its establishment, the validity of which has been dismissed in FJ II.

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the data subject, under which:

"1. When personal data relating to a data subject is obtained from that data subject, the data controller shall provide all the information indicated below at the time the data is obtained:

a) the identity and contact details of the controller and, where applicable, of its representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests pursued by the controller or a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second subparagraph, reference to the appropriate safeguards and the means to obtain a copy of these or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;

b) the existence of the right to request from the controller access to personal data relating to the data

subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;

c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;

d) the right to lodge a complaint with a supervisory authority;

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e) if the communication of personal data is a legal or contractual requirement, or a necessary requirement to enter into a contract, and if the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data;

f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, significant information about the logic applied, as well as the importance and the expected consequences of such processing for the data subject.

3. When the data controller intends to further process personal data for a purpose other than that for which it was collected, they shall provide the data subject, prior to such further processing, information about that other purpose and any additional relevant information in accordance with paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the data subject already has the information."

Article 83.5 GDPR: Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

b) the rights of data subjects under Articles 12 to 22;

Article 72 LOPDGDD (LO 3/2018) states: "In accordance with Article 83.5 of Regulation (EU) 2016/679, violations that constitute a substantial breach of the articles mentioned therein shall be considered very serious and shall be subject to a three-year limitation period, particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data as provided for in Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

VI

The image of a person, to the extent that it identifies or can identify them, constitutes a that may be subject to processing for various purposes.

Another obligation arising from the use of video surveillance for security purposes, in relation to data protection, is to comply with the right to information, through an informative notice.

Article 22, paragraph 4 of the LOPDGDD states:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. An internet connection code or address to this information may also be included in the informative device" (*bold text belongs to this agency).

VII

Article 83.5 GDPR states the following: "Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

a) The basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9 (...).

b) the rights of data subjects under Articles 12 to 22 (...).

Administrative fines shall be imposed based on the characteristics of each individual case, as an additional or substitute measure for the measure(s) provided for in Article 58 (...). When deciding on

the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation (Article 83.2 a) GDPR): the presence of various devices that may exceed their purpose is assessed; affecting customers and third parties accessing the same.
- the intentionality or negligence of the infringement (Article 83.2 b) GDPR): the presence of cameras that may exceed their purpose, directed towards the workplace, constitutes serious negligence, which may also affect the privacy of the worker(s) of the establishment, thus the described conduct is considered seriously negligent.

When motivating the sanction, the nature of the entity being claimed is taken into account, being a hospitality establishment whose income is unknown, which must adopt all necessary measures to protect the personal data of all its workers and/or customers; as well as the lack of initial accreditation of the legality of the system regarding the manner of informing about the presence of cameras in the facilities, which denotes serious negligence in the described conduct, thus a sanction of €4,000 (2,000€ + 2,000€) is imposed for the infringement of each of the articles 5, paragraph 1, letter C) and Article 13 GDPR previously cited, a sanction situated in the lower scale for this type of behavior.

VIII

Adoption of measures

The text of the resolution establishes what the committed infringements have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures are to be adopted, without prejudice.

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that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully understands their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Among the measures to be adopted by this Agency, this body requires additional measures regarding the installed video surveillance system, ordering the removal of those devices deemed unnecessary in relation to the purpose of the system, which is none other than the protection of the establishment and its belongings, as extensively explained.

Given that the responding party has demonstrated the reinstallation of the informational signs, the submission of documentary evidence in this regard is not necessary, adhering to the obligation to inform the entire workforce in the contractual document (e.g., data protection clause) about the presence of cameras and their purpose; as well as providing a copy of the form(s) duly adapted for clients, of which several copies must be available at the establishment.

As a guideline, a form will suffice indicating the name of the establishment, the person responsible for the images, and how to exercise rights (e.g., providing an email address), as well as a space for the affected party's signature.

It is noted that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on Ms. B.B.B., with NIF ***NIF.1, for an infringement of Article(s) 5.1 c) of the GDPR and 13 of the GDPR, classified under Article 83.5 letters a) and b) of the GDPR, a fine of €4000 (Four Thousand euros).

SECOND: TO ORDER Ms. B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR,

within ONE MONTH from the date this resolution becomes final and enforceable, to demonstrate compliance with the following measures:

- Provide a copy of the contractual documents that include the information (specific clause) informing about the presence of video surveillance cameras.
- Provide a copy of the form duly adapted to the establishment they manage, for the use of all clients thereof.

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- Documentarily certify (before/after photographs) the removal of those invasive cameras from unnecessary spaces, with the system being limited to those necessary for the protection of the establishment (e.g., access area and main cash register).

SECOND: NOTIFY this resolution to Ms. B.B.B.

THIRD: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must comply with the imposed sanction once this resolution is enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that certifies the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be

concluded.

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President of the Spanish Agency for Data Protection

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